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# Virginia Board of Education, Special Meeting, Thursday, May 11, 2023

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- Official meeting video (VDOE, YouTube): https://www.youtube.com/watch?v=T8XayQh5NH8
- Board of Education meetings, agendas and minutes (VDOE): https://www.doe.virginia.gov/state-board-data-funding/virginia-board-of-education

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Speech-to-text: whisper.cpp, model large-v3-turbo. Produced 2026-10-23. Each paragraph starts with its time [HH:MM:SS] in the meeting video.

**[00:06:08]** Hey, welcome everybody to the special meeting of the Virginia Board of Education, also known as the hardest working unpaid board in the Commonwealth. I am actually delighted and surprised to see so many people in the audience on a day that wasn't scheduled. I would first like to express my sincere appreciation to the members of the board who are able to make it physically here to get a quorum as required by state law.

**[00:06:34]** I know a few of you traveled from a great distance, and it is really greatly appreciated. Mr. Hansen said to me, well, that's what we do, but it doesn't mean it's any less appreciated. Joining us by Zoom, again, in accordance with our bylaws, I've approved the remote participation.

**[00:06:51]** Mr. Rotherham, Dr. Davis-Bott, and Mr. Sturdifant, welcome to y'all. Thank you for being with us. As some of you know, our bylaws allow the president of the board to call a special meeting. We had a number of items that needed to get done in order to, you know, have the system smoothly function, and so I called a special meeting for that purpose, and this is it.

**[00:07:14]** So, we will have the moment of silence followed by the pledge, and then we will get rolling.

**[00:07:48]** item a first review of virginia literacy act core instructional program guide as always we are delighted to welcome uh jenna conway good morning good morning good morning thank you chair gecker

members of the board superintendent kunz i am very pleased this morning to present to the board a key resource for implementing the virginia literacy act today we proudly present the core instructional program guide where the list of k-3 core curriculum that we have determined through a rigorous and comprehensive process performed by Virginia educators to be aligned with evidence-based literacy instruction and science-based reading research as required by the VLA. I'm joined here

[00:08:27] today with Dr. Emily Solari, a nationally renowned literacy expert, and her colleague, Anne Etten, both from the Virginia Literacy Partnerships Office at the University of Virginia. I would also like to take a moment to thank all of my VDUE colleagues who've helped get us to this place, but especially Kim Bowson-Brown, Carmen Couric, and Karen Little, who Kim and Carmen in particular did an extraordinary job supporting the review process as facilitators and making sure that there was VDOE representation at the table throughout the process. I will give a very quick overview of the VLA. You've heard this from us before, but just a quick refresher, walk you through very

[00:09:04] high level how rigorous, comprehensive, and Virginia-based this process was, then tell you a little bit about the guide that was included in your materials, and then walk you through our next steps to make sure the field is fully supported to implement the guide. As a reminder, the Virginia Literacy Act is seminal legislation that was passed last year to make sure that we could ensure all kids in Virginia have the opportunity to read at benchmark. We've expanded our focus from K3 to K5, but really trying to reverse the trends that were occurring pre-pandemic as well as address the setbacks coming out of the pandemic. We know that this is about sort of

[00:09:42] increasing supports for educators. It's a comprehensive ball, Bill, rather. And even more importantly, is really putting the best resources at teacher's fingertips and every single elementary school classroom across the Commonwealth. What we're here to talk about today is number two of the five components. I won't read every one of our five components, but a real focus on instructional materials. You may have heard this as HQIM, high quality instructional materials, but this is an assertive effort for the state while preserving local choice to say these are the best in class resources that we want school divisions to be able to choose from we've asked

[00:10:22] ourselves the question many times what should be different in virginia classrooms as of the fall of 24 25 as a result of this and one of those core shifts is making sure that no matter where you go in the commonwealth across your k-5 classrooms that teachers with tier one or the everyday instruction for all kids are using high quality curriculum that is aligned with evidence-based literacy instruction and science-based reading research. And it's really important if you're going to look for that as a state, that the state education agency, the Department of Education in partnership with VLP, establishes a list that everybody can believe in and that there are

[00:11:01] resources that everybody can choose from. And that's what we're here to discuss today. It fits into the overarching timeline. You've seen the different pieces of it, but again, the key point here is making sure that there's enough runway for school divisions to prepare, which is why, and we're very appreciative to Mr. Gecker and the members present and on the phone today or on the Zoom today, we needed to get this in front of you in May for first review to have 30 days and then bring it in June so that we can get at least this first list out while, as I'll talk about in a second beginning to run cycle two so we can get a full list out by the no later than the beginning

[00:11:37] of next year with this key notion that we have to get school division some time to implement but that's where we are today we are going to run an additional cycle you know that we're going to roll out in partnership with vlp training this summer for reading specialists we'll be ambassadors of implementation on the ground we'll wrap up cycle two with more resources more core curriculum as well as supplemental intervention materials, and then we'll be preparing by training teachers and principals going into the 24-25 year. We will also be rolling out at the same time our new overhauled screener, which will provide a better, more insightful, comprehensive look at the needs

[00:12:15] of our early readers. So we, a few months ago, we brought to this body, it was March, just the sort the overview of the process with a real emphasis on three things it has to be rigorous it has to be comprehensive and it has to be unique to virginia we heard that loud and clear while we of course looked to national experts and what was happening in other states we really wanted to make sure that this was touched by virginia educators at every step in the process that started first with working with vdue colleagues in partnership with virginia literacy partnerships to develop rigorous high quality rubrics we looked at other states we sought feedback on our rubrics from

[00:12:54] national experts virginia k-12 educators and our colleagues in higher education we then ran through a couple of practice runs to see if these rubrics could be used with real life materials we posted them online we shared them with vendors in advance and then we basically made sure we double checked with the ags and others that the rubrics fully align with the law so we knew that the tool that we were using to evaluate the core curriculum was of the highest quality. We then focused on process.

[00:13:21] How would we make sure that we had a fair, consistent, and reliable process using those rubrics, but to evaluate the actual curricular resources? Again, in partnership with VLP, we selected Virginia reviewers. We did an all-call for reviewers. I think we received nearly 200 applications. We selectively interviewed. We looked at -- they had to complete applications, And then we did our interviews and selected teachers, reading specialists, administrators, division representatives, leaders that represented all eight regions, all eight superintendent regions from Virginia.

[00:13:50] In partnership with staff from the VDOE, VLP trained our, we had facilitators, and they would basically, we would share the curriculum. They would first do training on the rubric and sign a conflict of interest statement. They would then each go off and evaluate the curriculum using the high quality rubric and then come back and come to consensus under the support of the expert facilitator. So a very rigorous process. It took a little bit more time than expected. It was a little tougher and more intense than expected at first. So we had to slightly expand our timeline as well as increase the size of the stipends for reviewers because they did such hard and important work.

[00:14:27] But at the end, it really means that, one, you can trust this process, and two, that it was Virginia educators who made the determinations for the resources that are presented to you today. It was a two-phase process of using these reviewers. So one was phase one to make sure there was not any sort of gross misalignment with the resource, and then a really intensive grade-by-grade phase two look that took much longer.

[00:14:51] So when I shared this with you in March, we talked about we had 11 resources originally, three did not make it on to phase two, and then eight did, and we're presenting the results on those today. I also want to note that we wanted to make sure that this was fair and transparent for vendors.

[00:15:09] And so, in addition to the phase one and the phase two process and all of the steps that I've articulated so far, there was also an opportunity to appeal, and we made sure that we had high-level experts looking at the appeal, what was requested, taking a look back at our process, was something missed, did we make any factual errors?

[00:15:29] We did not, at this time, as you'll see, we had up to five programs appealing. We did not make any changes in determination based on the rigor of our process, but wanted you to know that that was an opportunity for each of our vendors. And last but certainly not least, we wanted to make sure it was aligned with textbook adoption.

[00:15:45] So there was some language in the budget so that we had to make sure this process was aligned. So we worked very thoughtfully with our colleagues and humanities to make sure that we completed all the certification forms up front. We had the correlation with the Sols that we sort of address conflict of interest.

[00:16:00] And then part of the reason for the date of this meeting with a quick turnaround in June is for 30 days of public comment on these resources. this will ultimately make it easier for school to procure these resources if and when they are approved by this board. So without further ado, the core instructional program guide that we present to you today clearly communicates the results of this rigorous process. It starts with a preamble that explains the process and really how unique it is to Virginia, how rigorous it is, how comprehensive it is, and how it's touched by Virginia educators every step of the way.

[00:16:34] It includes the list, the quote unquote list of the approved resources that include evidence-based literacy instruction, align with science-based reading research, and that correlate with our SOLs. And then it includes a snapshot. And the snapshot is unique, but it basically is just a quick, here are the strengths and challenges of each resource, as well as to help inform decision making.

[00:16:57] You'll have that snapshot for the next 30 days. You'll also have open access to the resources on our website. And that will begin to help our school divisions determine what is the right resource for the needs of their educators, their students, their families.

[00:17:14] Here are the approved programs. Again, this is listed in the front of your resource with that more detail. You'll note that several are approved for K-3, and then there's two that are approved for K-2, with, again, indicating, you'll see in the snapshots, if they were not approved for K-3, explaining specifically why, so that you could address that in future.

[00:17:36] future rounds. And this is an example of that snapshot. So we like, like we do with textbook adoption at some point we'll publish sort of full rubrics for folks to go through in detail, but that's a lot to take in. If you're trying, if you're sort of sitting as a school division superintendent, as Dr. Siebert did, and sort of think of how do I bring this to my community, a snapshot ability to sort of look at some of the resources we think is a better way to support the guidance. So it's sort of sort of here are the strengths, here are the challenges, here are the know where it fully partially meets this is also important if you think at the other component of the law which says that we not only need to approve for curriculum but supplemental and

[00:18:16] intervention materials and so we really want to make sure when we roll out and cycle to the resource for supplemental materials that you can look at okay where is my core maybe not as strong and how might i supplement that particular part of the work as you're again taking in these resources looking

at the needs of your kids your students and identifying what are the best resources to address their individual needs so the here's where we go from here you've got the list and the resource um we will uh seek first review today and then bring it back for final

[00:18:53] review so that we're giving school divisions the maximum amount of time to begin to consider this as we face a 24-25 implementation of the law the materials will go online today and so everybody's available. So we have the full 30 days of public review as required by the textbook adoption process. We potentially, as soon as the end of next week, will open up cycle two. We will take K-5 core curriculum. We will also consider, for example, the two resources that they would like to make some modifications to their third grade resource. And to send that back, we will consider

[00:19:29] that K-8 supplemental and K-8 intervention. This will be a very big cycle. We will work very closely with superintendents, communicate to them. We need to get all of your resources in because it will probably take us until the very beginning of next year. And then that will be the list. This is just a partial list today. It doesn't cover fully K-5. It doesn't cover the supplemental intervention material. So this next round will be important. And then we will bring a longer version of this guide to you. We are also at the same time, we know that a good number of school divisions are already using these resources or are ready to make that decision

[00:20:04] this summer or this fall. And so in partnership with VLP, we are developing curriculum adoption tools. So imagine a toolkit that basically would walk you through step by step. How do you think about choosing a curriculum, engaging your stakeholders, your board, your constituents in that process? What are the right steps of implementation? Thinking about things like not only the initial training, but how do you prepare your administrators and leaders to do walkthroughs to see if, are you using the new materials and not the old materials, right? To what extent are these resources being used with fidelity? How do you make sure that the core curriculum that you've

[00:20:38] just invested in is shifting practice at the classroom level? And then last, but certainly not least, continuing to work. As we described in the earlier meeting, we've got to bring all sort of 1,200 of our reading specialists to summer institutes in year-long training next year. That's not just about evidence-based literacy instruction and science-based reading research, but really focusing on how you take that information and then think about the Virginia application so they'll have discussions about who's choosing a new curriculum how are you making that choice based on the needs of your students and how do you think about thoughtful implementation you'll start to

[00:21:15] think about okay as I start to maybe I'm already using some supplemental resources in my in my school division how do I think about you know balancing what is used for supplemental versus what is core how do I think about sort of new teachers versus experienced teachers all of the kind of implementation, making sure that that is also integrated into the training for reading specialists who are supported by the literacy coaches, then go out and support the broader set of teachers and principals starting in 2425. So with that, I'll leave it on next steps. On

[00:21:48] behalf of our superintendent, we recommend to the board for first review the core instructional program guide. Of course, the board is happy to take it for first review, but first, are there any questions? I have questions. Mr. Hanson? Just on slide five in the gray box talks about the science-based research. I just was reading yesterday where New York City has actually just adopted a phonics-based approach, and I just would like a little bit of explanation or

[00:22:23] how phonics is integrated or considered as part of the science-based. Absolutely. I'm going to defer to the expert on this question. Yeah, thank you. Thanks for that question. It's an important one. So phonics. This is Dr. Solari. I'm Emily Solari. So phonics is the core of early foundational skills for teaching children how to read. That is scientifically based. It's based in scientifically based reading research. We know that all children benefit from explicit and systematic instruction in phonics. And so our first phase review was really making sure that that phonics piece was

[00:23:02] done explicitly and systematically to align with the science and so programs did not make it to phase two if they didn't have that core component anybody else that's just one other question to process question um i appreciate the core curricula here but on the supplemental and the intervention pieces just what um are the i guess the rubric for local control of being able to make

[00:23:35] those decisions on the supplemental intervention materials i think one of the great things about about this process that they've done is they have taken national research, national experts, put the floor there, then use Virginians to actually understand and give feedback. The thing that I like the best is the slide where they give the guidance to the school division and they say these are the strengths, these are the possible challenges, because that allows school divisions to look at those and then mirror up what they're going to do for supplemental intervention and use their own understanding of the context of that school division and put those together. So this

[00:24:12] one of my favorite parts of the work that they've done from a practitioner standpoint because this really allows local control because it gives that whole perspective that our virginia educators gave on that material and then allows school divisions to take that body of work that virginia experts have done and think about that context within very different local school division settings so i'm really proud and one of the things i told jenna about this work this is top-notch best in class and i bet many other states will start to use this kind of template because it's really helpful on that front line of those implement to implementation toolkits that she discussed it is

[00:24:50] an outstanding way for school divisions to look at what are the strengths that virginia educators said this material have and what do i need to think about in my own context i'm really proud of this slide so i just wanted to give the chance to talk about this great piece of tool work that they've done thank you and just i want to thank all of you for your great work and getting this to this point one other thing too which i believe we noted in march and i just want to emphasize again we will also do a final all call for school divisions we have in addition to this very transparent process with commercial vendors we recognize that there are school divisions across

[00:25:26] the commonwealth in which educators have have dedicated many many hours to developing their own resources and so we've been working very closely with virginia literacy partnerships to let school divisions if they have something they want to submit to submit it um to use the same rubric right because you all are required as a body to say here are the criteria that we need to see in core curriculum um and we are working with with those school divisions on a more rolling basis so if there is then that we have had a few that have come through we have had some partners who have said we appreciated being submitted if we realize how um some of the gaps right between

[00:26:02] where the science is right now and what we have produced as a as a school division and we're glad we did this but we realize now we have to make a a different type of decision but i think that's very important in terms of not only ensuring local choice but also recognizing places where there has been that

type of effort and being willing to work with those school divisions it's a small number but still important in terms of the dedication and commitment of their educators mr rotherham followed by dr sieber and is your hand up electronically thank you mr president um i'm sorry i can't be with you all today i mean first of all i just want to say this is just really

[00:26:40] terrific work from from getting this in the legislature and getting it done to where we are now on on an implementation and it's just it's really exciting and a big deal i think for the for the commonwealth um i just want to underscore the part about next steps i think that was really important and i i worry even some conversations i've heard have been part of that people think this is sort of some sort of one and done and this is the list or whatever and that this is a this is an ongoing process i think it's really just really important to underscore that and then finally i just want to know for my colleagues um i'm very supportive of this effort and the work we're doing but i'm going to recuse myself uh many people i know this is first review but we'll

[00:27:18] get to any votes or anything i just want to say that at the outset i know i think it's important that people have confidence in the process i don't do any work around actually representing anybody my organization doesn't or around adoption at all but um we have worked with some of the providers who are either on this list or could be potentially in the future and so just make sure that there's full confidence the process i intend to i intend to recuse thank you dr siebrick yes thank you very much and kudos the um the effort to ensure extraordinary first instruction high

[00:27:55] quality first instruction uh is great for all children and as this is implemented it absolutely should and we would expect it would reduce the number of children who need tier two and tier three services so very very excited about that i think the the review of programs and including the the chart that uh dr coons pointed out very good and so different programs check different boxes some programs check boxes a little stronger than than others and so that's very helpful and i think what i was hearing um you know from from my colleagues is this idea of ensuring that locals have the opportunity to kind of build these and put these together in certain ways

[00:28:32] and so i i think this next 30 days will be really important for us to hear from the field because at first blush it looks like these are lanes that you need to be in when in reality there hopefully be opportunities to we will be in this lane for these grades we're going to pop in this lane for this grade and we want to use this as a supplement and and just really kind of assemble it to the knees and i see that not only happening at the division level i'm just thinking of individual schools where just based on the data we have children who need these and children need that so i i just hope that there will be that flexibility to kind of take these approved things and build them and into a coherent piece and i think that's probably

[00:29:11] some of the some of the questions we're going to hear and some of the clarity that would be nice to have for final review absolutely i also think it's it's incredibly important we've talked quite a bit is thinking about the curriculum adoption toolkit how to support every level of the system to use it i mean it is is as andy noted it's not just enough to purchase you know the resource or even the initial pda i mean this is a hearts and mind challenge around really helping all of our educators and some of you may have heard um you know whether it's reading an article or on a podcast is sort of educators understand the power of unlocking phonics and some of these science-based

[00:29:50] approaches what a difference it can make with with all kids and sort of making sure that that's what we're leading with rather than you know a lane that you just this is just a mandate and it's coming and

i think that um we've tried to really focus on and are thankful for the comprehensive nature of the law and that we have this opportunity through both the training and through the screener which touches all of our k3 k5 classrooms to think about that coherence that sort of ability to individualize that abilities to recognize educators as professionals so we're putting the best tools at their fingertips right but we're not you know we're not we we still want

[00:30:28] to empower them as educators rather than just you know institute a mandate and i think that that that is very important as we think about the implementation and the resources for every level of the system sultan i just want to chime in and join in the thanks and kudos this is really important work and you all have done such a thoughtful job of it and we're grateful um i i hope that the uh education stakeholder groups are paying close attention i'm sure they are and i hope they will weigh in uh recognizing we didn't have public comment today but that will weigh in in writing before the next meeting or at the next meeting if there are things they think

[00:31:08] we should be aware of or tweak or add or other other uh items we should be aware of but my guess is that you're going to hear overwhelming support for the diligent work you've done. My only question is, well, on the implementation beyond this, what are some of your immediate next steps?

[00:31:30] And in particular, you may have told us this already, so forgive me if I've forgotten, but what opportunities are we taking advantage of this summer to train folks moving towards the full implementation the following year, and what are we doing? Where are we on reaching out to the ed prep programs? Absolutely. So in terms of the very specific next steps, the two big things that are happening is we will make these resources available online, and we're going to send out a larger literacy update that covers everything, both in terms of making sure people are aware of this, this very important cycle too, and the reading specialist

[00:32:09] training. So that should go out next week. And these resources will be available online. And we were trying to maximize on these last few weeks of school to make sure that we get that out to all of our school divisions. We then will follow up with the resource this summer, the Curriculum Adoption Toolkit, and getting that out to the field and beginning to think about these choices.

[00:32:28] The end of the summer, the very important training and professional development opportunity is the reading specialist training. And so we are bringing in up to 1,200 reading specialists from across the state for a series of two-day summer institutes, which is an orientation right on both the evidence-based literacy instruction, along with the science-based reading research, a set of modules. I can ask my colleague to describe a little bit more detail, but basically two days, and then equally important, ongoing support over the course of this year. So the law requires us to work with Virginia Literacy Partnerships to hire literacy coaches who,

[00:33:07] in turn then support these reading specials so they'll all be on board they'll come to the summer institutes they'll begin they'll do the two-day in training they'll then have a monthly module an online resource with some synchronous connection afterward with your literacy coach sort of across the state so you've got 10 literacy coaches you've got the 1100 1200 reading specialists kind of in their schools right and there we're both preparing making sure that the reading specialists have the knowledge basis but we'll also use this as an opportunity to make sure do you understand the guide and as dr coons just described how to think about using this choice and forming your local constituents on using the kind of the snapshot do you understand you know when we roll out the

[00:33:46] curriculum adoption toolkit how to use this let's talk about how we're using this kind of communities of practice you know when the screener comes out like the various resources the student specific reading plan so it's really a year-long training opportunity that it kicks off with the summer The goal then is you've got this set of not only the 10 literacy coaches, but the 1200 reading specialists who then will help us think about how do we get to every last teacher and principal and 2425 as required by the law.

[00:34:14] So it's really kind of the they are the ambassadors. They are the train the trainers, and the work with them starts this summer. We've heard from some of our others who want to attend or be a part of this. We've got a lot of this training online now and are working about kind of creating pathways for administrators, for higher ed, for principals who want to do some of the online content now.

[00:34:35] But the goal is to get literacy coaches and reading specialists all with the same knowledge basis and equally prepared to use these resources on the ground and then to get to teachers and principals. So the other thing I think, you know, part of this is that the enactment date is 2024, but we are very aware that people need to be learning about evidence based instruction now.

[00:34:56] And so our office has developed a set of modules that are publicly available for anyone to go on right now and learn about scientifically based reading research evidence based literacy instruction and the alignment to the new screener. so that's all aligned and so our office is also in collaboration with jenna and team at bdoe going to set up going to prepare sort of a monthly over the for the next academic year the 23-24 academic year that will go to divisions this is what you can do to prime your division your ela directors your special ed folks your principals to get ready for implementation in

[00:35:32] 2024 and along with those packets will be please look at this module go through these this content online so that you have the knowledge that you need to support the implementation starting 2024. the second part of my question was the ed prep programs because i'm going to take out of the ed prep programs to be behind the curve yeah i'm i'm going to take that question um in our division of teaching and licensure we are going through some major transitions we obviously have another item on on our second special called meeting that they have to address first so i'm taking on that part of the virginia literacy act at this time we are working to get a team together

[00:36:11] to launch that work and get that work on top of it i think the modules that dr solari just talked about are a great starting point for us to start thinking about the content that we're doing with specialists the open source content that is available for school divisions to prep those Those kinds of resources will help us accelerate conversations with our higher Ed partners.

[00:36:31] I have had a couple of different conversations in preparation for getting ready to launch this work. But this work will come directly out of my office until we have a deputy of teaching and learning. Once we have a deputy of teaching and learning, that person will lead this work and will accelerate including that partner.

[00:36:47] But we are going through some major overhaul in our teaching and licensure division to make sure that we are effective and move quickly and accelerate that work. going to hold that myself anybody else yeah miss creasy so just one um final thing is i think about how we process through this like an on the ground approach you know how are we getting the buy-in at the grassroots level because you know in a classroom situation we know that teachers have a thousand things coming at them all the time and we really need for them to understand fully the

[00:37:25] reasoning behind why we are doing this and so to me it's a real mindset shift you know we're saying do this do that you have to do it this way and you have to do it that way in so many circumstances and even if it's just adding you know I listen to podcasts all the time and I see I read through data every day all day long and oftentimes that's overwhelming of course to a teacher who's in the classroom and doing those things every day. How can we support with some like really quick resources, maybe, hey, go listen to this podcast when you're in the car on the way to school,

[00:38:01] those kinds of things to sort of interject into how we're communicating with teachers, divisions, reading specialists, literacy coaches. I think those things would really assist in our process as we move forward through the 23, 24 years. Absolutely. And I think there are two points on that. I mean, one is we have recognized the importance of some strategic communications and really getting this word out the hearts and minds. You've got, I mean, in some ways, if things go well and this board approves this resource next month, the lift then really becomes on local communities, school divisions, school boards, right? And really helping, making sure that every level of that

[00:38:40] system understands the why, in addition to your educators and principals who will be, you know, the foot soldiers of that work. So we're looking at how we might do that in, you know, all different types of media, social media, podcasts, right, kind of getting that out there. We've been looking for validators, which are folks who are doing it already, right? We know as we're sort of sorting out which of the school divisions are already using these resources and well, and there was another article, you know, in the New York Times, right, about sort of a Virginia sort of division already using some of these resources and seeing a difference. And so I think that's critically important. I also just want to take a moment to thank our reviewers. We now, we have the 40

[00:39:17] reviewers. We've got nearly 30 individuals on our Virginia Literacy Advisory Board. We've got another set of folks on our PALS task force. I think really going to these Virginia educators who've already stepped up, who are these early adopters and these folks who deeply understand the why as somebody who got to read some of the applications for the advisory board. And as Emily and Ann can attest from the reviewers, I mean, it's, it's just awesome. And talking with Carmen and Kim and folks who did the review process, if you do the review, you come out with a really deep understanding of why this matters and how to look for it. And so really being strategic,

[00:39:53] we now have hundreds of individuals who have helped us. How do we also, in addition to what you described, Grace, deploy them as these folks who are both knowledgeable, have you already dedicated a little bit of sweat equity to this and are probably even better ambassadors of it than us you know and blp that's it for questions i would also like to echo some of the comments about how great we think this work is you know i remember jenna when you first came as the chief school readiness officer uh and the work you've done pre-k and the work you've done here is i think

[00:40:31] the most impactful stuff that i'm going to see during my tenure on this board so thank you so

[00:40:36] much for what you've done. Thank you all. Okay, the board has taken that for first review, and we'll see you again in June. Thank you all for being with us. Item B, first and final review, potentially, of recommendations regarding literary fund loan applications, approval for release of loan funds, Franklin City Public Schools. Mr. Dickey. Good morning, President Gecker, members of the board, Dr. Coons. These are the next two loan requests to come to you for release from the literary fund that were submitted

[00:41:11] to the department during the winter open enrollment period. Franklin City has submitted two literary fund loans for $1 million each for roof replacement projects at Franklin High School and S.P. Morton Elementary School. Under the terms of the loan, these two loans would be payable over 20 years, and they're eligible under your guidelines for a 2% annual loan interest rate in the project applications were shown for you in attachments A and B. All of the documentation

[00:41:51] and application requirements for these two projects have been met by Franklin City for release of the loans. V.J. Ramner Rain's office has provided technical assistance and review on the drawings for these smaller scale roofing projects and have completed that review. So these are ready ready for your action to release these two loans and the superintendent of public instruction recommends that the board of ed way first review and approve the release of these loans

[00:42:28] requested by franklin city for franklin high school and sp morton elementary for the requested roof replacement projects payable over 20 years two percent enter annual interest rate okay thank you Mr Dickey thank you Mr Andrean appreciate you being with us uh any questions i don't see any uh is there a motion then to waive first review and approve the item thank you Mr Hanson is there a second thank you Ms Creasy all in favor say hi hi hi okay i think that was unanimous when i could

[00:43:02] didn't see Mr Sturdifan hi thank you okay uh let's move on to item c first and final review of have recommended grant awards for school project applications. - Yes, thank you, President Gecker. Yes, this is the major school construction grant program that was created at the 2022 session, funded at $450 million, and the funds can be used over the biennium.

[00:43:32] You adopted guidelines to implement the Appropriation Act provisions during the fall timeframe. Those were completed in the January timeframe. And you'll recall your guidelines include 11 scoring criteria and associated point values.

[00:43:55] And those are shown in attachment A. Those are really the basis for the competitive application approach for this program. And those criteria focus on poor building conditions, commitment and need, which were the key triggers the General Assembly placed in the Appropriation Act. The board was also required to set a minimum qualifying score for a school project to qualify for a grant award under the program. You'll recall you set that in the guidelines

[00:44:27] at 65 points on a 100-point scale, so a school application project would need to score at at least a minimum 65 points on the 11 scoring criteria. We then conducted the open application process from late February through March 31 for school divisions to apply for grants.

[00:44:53] And we received 119 grant applications from 63 school divisions. At that point, DOE staff reviewed the submitted grant applications, scoring all the applications against the 11 competitive criteria in the guidelines.

[00:45:13] A key piece in the awarding process are awarding grants based on 10, 20, or 30 percent of approved project cost is set out in the Appropriation Act, and that allocation of grant awards based on the project cost is based on the school division's composite index and physical stress category and drives whether the grant award is 10 20 or 30 percent of the project cost this item today requests the board

[00:45:51] to approve the recommended grant awards for school projects with which meet the minimum 65 point scoring criteria and those projects are listed with various detail in your attachment to overall the

recommended grant awards total 365 million dollars of the 450 million dollars available and recommended for approval are 40 school projects and 28 divisions looking at the very

[00:46:28] quickly at attachment two, you will notice in the format of the recommended awards, some of the key data there is the scoring criteria total rank ordered from high to low. Again, the recommended projects must meet a minimum of 65 total points on the 100 point scale. We also show the grant award percentage based on the composite index or fiscal stress criteria, the 10, 20, or 30 percent, their reported total project cost. And then the very last column, an attachment to

[00:47:08] the recommended grant awards, which on a statewide basis total $365 million. Going forward, President Gecker, that does leave about $84, $85 million in available funding, And that would allow the department to offer another open enrollment process later this calendar year.

[00:47:34] We, of course, plan to plan to do that as we proceed with another round of applications. We, of course, would appreciate any input on potential changes to the criteria and the guidelines or other elements in the guidelines themselves as we move forward.

[00:47:57] But we feel like this was a a good first cut at running and awarding grants under this program. And then lastly, the superintendent of public instruction recommends that the board way first review and approve the recommended grant awards for the school projects listed for you in attachment to any questions.

[00:48:22] Yes, sir. So a lot of applications, short period of time. Kudos to Kent and Vijay and your teams for getting that done. As an employee of RxC Public Schools, with an application pending, I'll recuse myself from item C. Let me ask a question then, Kent, if that's okay.

[00:48:39] Sure. When did the school divisions that didn't make the cut get notified? And how much time has there been, if any, for there to be an appeal, if you will, of the calculation? Because we didn't get them until yesterday, maybe. Yeah, we've begun to receive some requests for information and data. We've told folks who have inquired about the awards and the total points and attachment to has been publicly posted, so school divisions are beginning to review that data.

[00:49:16] So we are getting some questions and requests for some of the, you know, granular detailed data on the 11 scoring criteria, which we'll be responsive to. However, we, you know, we're going to release any detail prior to today's meeting in this agenda item.

[00:49:33] I guess what I'm asking is, what if we made a mistake? Or if somebody convinces you that the scoring on a particular item was incorrect? You know, the closest analogy I have in my world was, you know, low-income housing tax credits. You submit your form to VH, well now VH, they score it, they announce those scores, and then there's, I think, a 30-day basically period during which people who didn't, you know, make the cut have a chance to say, now you missed this in the application, or I should have had this other number.

[00:50:08] I'm a little bit concerned, more than actually a little bit concerned, that if we don't give the divisions who were close to the bubble a chance to at least look and talk, that we're going to be back here in June with people saying, you know, we didn't get something we should have gotten. But we're absolutely going to be responsive to any requests or concerns.

[00:50:29] and uh how are we gonna i mean would we use for example the remaining 84 million to cover if we made an error since there is money absolutely yeah we we yes sir i think we would have that authority that money is available if there was a substantive technical error and and some of the data but in terms of a formal process then you know which is really i mean we're talking we're chatting here but it concerns me that we don't have apparently or maybe we do uh you know an appeal or review right for the divisions that didn't make the cut and some assurance that that'll be heard i mean

[00:51:07] what you said during the presentation which i appreciate is that with the leftover money we'll have another round and what i'm asking is should we formalize an appeal period uh let's just say you know, pick an arbitrary 30 days, leave that 84 plus million sitting there against the possibility that somebody on appeal would make that cut. We absolutely can do that. And I mean, practically speaking, it would take us a certain period of time to proceed with an additional round of

[00:51:39] applications. So we can certainly be responsive to any concerns, any inquiries, any requests for information will conduct thorough review of of data requests that may come in and um you know certainly we have the option to not proceed with any more obligations or commitments in the next round while we're um in in a in a period of of um responding to requests and reviewing data in in the case in case there are technical issues and again i'm not suggesting you guys i think you made a

[00:52:16] mistake. That's not the point here, but it is in the realm of possibility. I'm going to comment. President Gecker, I really appreciate your recommendation. I think we can definitely put in an appeals process and hold on doing another round for at least 30 days, so we will take that advisement and do an appeal notification. We can put it in a superintendent's memo or email next week and make sure that everybody who applied has that 30 days before we would move forward with the next round. I appreciate that feedback. I don't see any other questions. You know, I'd like

[00:52:49] to have the motion be to waive first review, to approve, but also then to put in place a 30-day appeal process and, you know, not commit the other funds that are remaining until such time as that appeal process has, you know, played out. I know that's not very artful, but that's the concept I think I want to deal with if that meets well we'll see if it meets the approval of the board is there a motion of that effect thank you Mr. President ask a question sure I I I think this is I I have

[00:53:24] the direction you're going to make sense do we do we either have the authority um or do we want to put it on in this motion that you know an appeal based on obviously if there's mistakes of of fact and data and things like that I I wanted to make sure we don't open up just enough I just for if don't like the decision go ahead and appeal like there seems like there should be some standard for reasons that you can appeal the that the good news yeah i appreciate that andy the good news with this program and i think mr dickey would agree with this is that the criteria were basically set

[00:53:58] forward by the legislature i mean the what put this together gave us what we had to do i mean we weren't given a lot of flexibility here and so the appeal would by nature be on the numbers as opposed to gee I just didn't like it it would be you didn't give me enough uh points in category x or you know somebody inputted the wrong data in the computation it's not going to be I don't see a possibility for appeal here based upon you know sort of the somebody's individual view of the merits of a project can do you have any comment on that that close yeah I would agree with that

[00:54:36] President Gecker, yes, that it should be factually based and focused on any technical errors that possibly may have occurred in the data. Yeah, I mean, even our guidelines basically just mirror the

legislative mandate. Mr. President. Yes, sir. Can you read that motion again? Tell me what that motion was again. All right. Motion is to waive first review, approve the item, and in addition, mandate a 30-day appeal period during which time the department will not obligate any of the 84

[00:55:11] plus million dollars that remain in case somebody jumps over the 65 percent threshold and would therefore be considered entitled to the loan? I guess my question or concern is how long will that process go for? 30 days. It's going to be only a 30-day appeal process after that 30 days decision has to be yeah if you don't appeal within 30 you're done and my guess is since they have the

[00:55:45] template staff can turn around numbers within about four or five seconds yeah maybe maybe ten but all right we'll make it ten to give them some spare time they can take a sip of their coffee while they're waiting yeah i think um that just kind of complicates the motion i think it should be a clean motion that we simply approved um without that addition that's just my thought on

[00:56:14] Okay. And then I guess, again, the concern is if somebody, because we didn't get this list and therefore the jurisdictions didn't get this list until yesterday, if there is a mistake in the calculation, what's the remedy? I think there ought to be a remedy. I don't think people ought to be shut out because of an administrative error or oversight.

[00:56:34] If I may weigh in, it is unusual for us to act on something on first and final review one day after the information was posted without the stakeholder affected community having had an opportunity to have input and I therefore would support having the appeal process.

[00:56:53] We could, and Mr. Dickey may well know, you know, are there folks who were next in line who, you know, you may have some sense of whether they're going to be folks out there who are going to be disappointed and therefore back checking your numbers carefully and may submit appeals or whether there's a big gap between the ones you've approved and the next ones.

[00:57:20] But but but regardless, I think the process we're talking about will resolve that it may be. Correct. We do have several projects that are fairly close to the threshold in the low sixties. We didn't have any that across the 11 criteria that ran up, you know, around 64, literally a point away, but some several points away.

[00:57:41] So the ones who are several points away, if I understood your answer to Mr. Gecker earlier correctly, did not know that they were off the list rather than on the list until you posted documents yesterday.

[00:57:58] That is correct. So they haven't had really any, and we don't have public comment today, so they've had no effective opportunity to come in and tell you or us that you ran your arithmetic wrong. that ran your arithmetic wrong is about the only thing they can say but but there may well be you know data content you know data in etc errors it's possible certainly yeah oh can i ask while while we're uh can i ask the other alternative would be and i know we've talked about this before but

[00:58:34] instead of doing this on first and final review just do it on first review today and finalize in June and maybe that's a cleaner and simpler and more more normal process and you know to the point that the divisions are all ready to get going those who are on the list know that they're on the list on first review and have full expectation that they're going to be finalized in June so you know how how bad an impact on the field would it be to do first review today and final review in June well it you know we've obviously tried to expedite uh the award process uh there there are

[00:59:12] you know certainly projects here that that are ready to go have already commenced construction or uh very close to that um uh that they can't do unless the money is actually committed well i think i appreciate the suggestion i think it creates problems in the field okay right problems i would add that i have four or five very excited letters from school divisions because they have said you know our projects are hanging in the balance and we are so excited so i just want to add that we do have evidence from the school divisions that they are pretty excited to get

[00:59:50] this money as soon as possible okay so again uh i think miss creasy made the motion i'm going to ask her to revise it upon some advice i just got not to call it an appeal right but a review period of 30 days. And that's okay with you, Ms. Creasy. Is there a second to that motion? Thank you, Mr. Hanson. All those in favor, signify by saying aye. Aye. Aye. Aye. Aye. Aye. Any opposed? Mr. Sturdifant, I didn't. Yes, I said aye. I'm sorry. Believe it or not,

[01:00:25] the video board sometimes is hard to see and the video, you know, the audio doesn't come through as distinctly as it should. So thank you. All right, that carries. Thank you, Mr. Dickey. We are adjourned until 10 o'clock.

